

Hearing, objections and post-order instructions

The court decides eligibility and relief. Do not fill judicial findings, prosecutor decisions, hearing dates or court/service certifications.

R.C.2953.32 and 2953.33 hearings follow the applicable 45–90 day statutory framework.

Follow the actual court notice, preserve prosecutor/victim notice and objection rights, and bring requested records; no generated hearing date is supplied.

Stop for legal assistance: The sealing-versus-expungement election, which is a legal choice with different waits and different exclusions.

Stop for legal assistance: Any first or second degree felony, any felony offence of violence, any sexually oriented offence, any registration history.

Stop for legal assistance: Any traffic or motor vehicle chapter offence, including OVI.

Stop for legal assistance: Any offence where the victim was under 13.

Stop for legal assistance: Theft in office.

Stop for legal assistance: First or second degree domestic violence.

Stop for legal assistance: Any third degree felony where the counting rule may bite.

Stop for legal assistance: Out-of-state or federal convictions, which move the venue to common pleas.

Stop for legal assistance: Any incident that produced more than one charge with different dispositions, which triggers ORC 2953.61.

Stop for legal assistance: Pending criminal proceedings or open warrants.

Stop for legal assistance: Prosecutor objection, and any victim objection where applicable.

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Stop for legal assistance: Choosing between sealing and expungement, which is a legal judgment with different waits and different exclusions.

Stop for legal assistance: Immigration exposure.

Sealable but not expungeable: third and fourth degree misdemeanor domestic violence under ORC 2919.25, and protection order violations under ORC 2919.27 or substantially similar municipal ordinances.

Ohio has both sealing and expungement and they are different remedies. Neither remedy means that the record is completely gone from everywhere.

"Eligible offender" no longer exists. SB 288 removed that definition from ORC 2953.31 and with it the numeric cap on how many convictions a person could seal. Do not use the former numeric conviction cap to decide whether you can apply; the current exclusions and other requirements still apply.

For § 2953.32 conviction expungements, BCI keeps a limited record for law-enforcement employment qualification and disqualification, while other entities receiving notice must destroy, delete and erase.

"Sentence" does not include payment of court costs, so unpaid court costs do not delay eligibility.

If relief is granted, retain the signed order and follow its agency distribution directions. The BCI request is a blank post-order transmission companion for the authorized sender, not an application for relief. Do not sign, date, check record-system boxes or certify a judicial order before those events occur.

Sealing does not destroy records. For expungement under R.C.2953.32(D)(5), BCI retains a

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limited record for law-enforcement employment qualification or disqualification even when other notified entities destroy, delete or erase records. Do not claim erasure everywhere.